

42. Decision, etc., or the Tribunal.- The decision or orders of the Tribunal shall be by a majority of the members sitting and shall be final.

Comment

Section 42 provides for the finality of the decision of the Tribunal.

43. Bar of jurisdiction of Courts.- No suit shall be instituted or proceeding taken in respect of any matter which the Tribunal is empowered to deal with, or decide, under this chapter

Comment

Section 43 bars the jurisdiction of Courts in respect of any matters which the Tribunal is empowered to deal with or decide.

44. Relief which the Tribunal may grant.- In the case of any complaint made under Cl. (b) or Cl (c) of Sec. 36 the Tribunal may

- (i) fix such rate or charge as it considers reasonable from any date as it may deem proper, not being a date earlier to the date of the filing of the complaint;
- (ii) fix such a refund of a amount, if any as being the excess of the rate or charge fixed by the Tribunal under Cl.(i)

Section 44 enunciates the reliefs the Tribunal may grant.

45. Revision of decisions given by the Tribunal. – Where a railway administration considers that since the date of decision by the Tribunal, it may, has been a material change in the circumstances on which it was based, it may, after the expiry of one year from such date, make an application to the Tribunal and the Tribunal may, after making such inquiry as it considers necessary, vary or revoke the decision.

Comments

Section 45 confers on the Tribunal power in certain circumstances.

Appeal, an appeal lies from final judgment passed in a summary suit.- An appeal lies from the final judgment passed in a summary suit directing the defendant to pay the decree claim in default of security not having been furnished to suit under Order XXXVII rule3(2).

Plaint rejected, appeal cannot be a continuation of a non-existing thing.- The plaint had been rejected and , therefore, there was nothing before the Court.

The appeal, therefore could not be said, in such a case, to be continuation of a non-existing thing.

Admissibility of the document cannot be assailed in appeal.- Certified copy of the registered sale deed, dated 26th September, 1927, was admissible in evidence and the admissibility of the document could not have been assailed in appeal.

46. Execution of decisions or orders of the Tribunal.- The Tribunal may transmit any decision or order made by it to a civil Court having local jurisdiction and such civil court shall execute the decision or order as if were a decree made by that court.

Comment

Section 46 provides that the order of the Tribunal shall be a decree of the civil court and shall be executed accordingly.

47. Report of the Central Government.- The Tribunal shall present annually a report to the Central Government of all its proceedings under this Chapter.

Comment.

Section 47 provides that the Tribunal shall make an annual report to the Central Government of its proceedings.

48. Power of the Tribunal to make regulations. – (1) The Tribunal may, with the previous approval of the Central Government, make regulations consistence with this Act and rules generally to regulate its procedure for the effective discharge of its functions under this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters namely,

- (a) the terms and conditions of service of the officers and employees of the Tribunal;
- (b) the award of costs by the Tribunal in any proceedings before it;
- (c) the reference of any question to a member of the Tribunal or any other person appointed by the Tribunal, for report after holding a local inquiry;